



DECISION

Complaint No. : POS/RL-121(LKA)2025

Name and address of the complainant : Mr. Rafique Ahmed Tunio R/o village Allah Dino Tunio, Taluka Kamber, District Kamber Shahdadt Kot.

Name of the Agency Complained against : Executive Engineer, Public Health Engineering Division, Kamber Shahdadt Kot.

Name & Designation of Investigating Officer : Mr. Ali Akbar Jagirani, Director, Regional Office, Larkana

Vetted by : Mr. Muhammad Naseer Jamali, Advisor –N

Subject : **ALLEGED FAILURE TO EXECUTE A SCHEME OF LAYING OF PAVER BLOCKS AT VILLAGE ALLAH DINO TUNIO, TALUKA KAMBER.**

COMPLAINT

Mr. Rafique Ahmed Tunio and others filed a complaint dated 10.04.2025 wherein they stated that Public Health Engineering Division (PHED) Kamber Shahdadt Kot has executed a scheme ADP-NO.3847 (2023-24) of laying of paver blocks at village, Allah Dino Tunio but the agency has failed to execute the same at their mohalla of the village. Aggrieved by that, they solicited intervention of this Institution.

PROCEEDINGS

2. The complaint was admitted under section 10 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991 (amended up to date) subject to submission of Affidavit on Form A and by condoning the delay.

3. This office issued a notice vide letter dated 14.04.2025 to the Executive Engineer, Public Health Engineering Division, Kamber Shahdadt Kot for report, who in response, informed vide letter dated 28.04.2025 that the subject scheme was approved with an estimated cost of Rs. 2.0 million. The scheme has been partially completed at the site, whereas the remaining work, as pointed out by the complainants, could not be executed due to the non-removal of encroachments from the complainants' mohalla.

4. It was further reported that the villagers had filed CP No. D-786/2023 before the Sindh High Court, Circuit Court Larkana, which was disposed of vide order dated 18.03.2025 with directions for the removal of encroachments within two months. The operative part of the Court's order reads as under:

"Based on Supreme Court precedent, this court directs the respondents to look into the concern of the portioner and all encroachments on the subject land must be removed immediately. The Deputy Commissioner, SSP concerned is ordered to assist the department to remove these encroachments within two months and submit a compliance report to the Additional Registrar of this Court.

4. A copy of the agency's report was forwarded to the complainants for rejoinder vide letter dated 28.04.2025, wherein the complainants reiterated their demand for execution of the work in their mohalla.

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DECISION

5. In view of the above, and in exercise of the powers vested in me under Section 11 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991 (as amended) I, hereby direct the Executive Engineer, Public Health Engineering Division, Kamber Shahdaskot, to execute the remaining work of the scheme subject to the removal of encroachments from the mohalla of Village Allah Dino Tunio where the complainants reside.

Given under my hand and seal of the office

Sd /-

(Muhammad Sohail Rajput)
Sitara-e-Imtiaz PAS
Ombudsman, Sindh

Karachi, dated 30th March, 2026

